to his private property. *Mt. Hope Cemetery* v. *Boston*, 158 Massachusetts, 509, and cases cited on p. 512; *Commissioners* v. *Lucas*, 93 U. S. 108; *Mt. Pleasant* v. *Beckwith*, 100 U. S. 514, 533; *Broughton* v. *Pensacola*, 93 U. S. 266; *New Orleans, M. & T. R. Co.* v. *Ellerman*, 105 U. S. 166, 172; *Richmond* v. *Telephone Co.*, 174 U. S. 761, 777.

These property interests and pecuniary rights of a municipality as to a public way, when taken in conjunction with the contract power of the municipality with reference to the repair of streets, *Brookfield* v. *Reed*, 152 Massachusetts, 568, places the property rights of the city, in respect of highways, upon the same basis as its property rights in sewer systems and water works. Property rights of municipalities in sewers are recognized in a multitude of cases. *Johnston* v. *District of Columbia*, 118 U. S. 19; *Maxmilian* v. *Mayor*, 62 N. Y. 164; *Coan* v. *Marlborough*, 164 Massachusetts, 206; *Child* v. *Boston*, 4 Allen, 41. As to water works see *Hand* v. *Brookline*, 126 Massachusetts, 324; *Johnson* v. *Worcester*, 172 Massachusetts, 122; *Lynch* v. *Springfield*, 174 Massachusetts, 430; *Esberg Gunst Co.* v. *Berlin*, 55 Pac. Rep. 961; *S. C.*, 34 Oregon, 282; *Walla Walla* v. *Walla Walla Water Co.*, 172 U. S. 1. As to wharves, *Mersey Docks Board* v. *Gibbs*, 11 H. L. Cases, 686; *Petersburg* v. *Applegarth*, 28 Gratt. 321; *Pittsburgh* v. *Grier*, 22 Pa. St. 54. As to gas works, *Western Savings Fund Society* v. *Philadelphia*, 31 Pa. St. 183; *San Francisco Gas Co.* v. *San Francisco*, 9 California, 483; *Middleborough* v. *N. Y., N. H. & H. R. R. Co.*, 179 Massachusetts, 520.

The city of Worcester has a special proprietary right in the property of the defendant in error reserved to it in the original statute incorporating the railroad company, Chap. 148, Mass. Laws of 1861, in regard to its right of purchase of the railroad company's property. This is property. *Richardson* v. *Sibley*, 11 Allen, 65; *Cambridge* v. *Railroad Co.*, 10 Allen, 50; *Boston & Albany R. R. Co.* v. *Cambridge*, 159 Massachusetts, 283; *Water Supply Co.* v. *Braintree*, 146 Massachusetts, 482; *Water Co.* v. *Rockport*, 161 Massachusetts, 279.